



POLICE DEPARTMENT

April 17, 2012

MEMORANDUM FOR: Police Commissioner

Re: Detective Robert Francis
Tax Registry No. 925311
71 Precinct
Disciplinary Case No. 2010-0711

The above-named member of the Department appeared before the Court on August 17, 2011, and December 8, 2011, charged with the following:

1. Said Detective Robert Francis, assigned to the 71 Precinct, on or about January 3, 2009, while on-duty, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Detective stopped and questioned Person A without sufficient justification.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT
P.G. 212-11 STOP AND FRISK

2. Said Detective Robert Francis, assigned to the 71 Precinct, on or about January 3, 2009, while on duty, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Detective did enter Apartment [REDACTED] without just cause or consent.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

3. Said Detective Robert Francis, assigned to the 71 Precinct, on or about and between January 3, 2009 and January 4, 2009, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Detective did provide incomplete and misleading information to an Assistant District Attorney, [REDACTED], and signed a Criminal Court complaint that contained inaccuracies.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED CONDUCT

4. Said Detective Robert Francis, assigned to the 71 Precinct, on or about and between January 3, 2009 and January 4, 2009, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Detective caused an inaccurate Criminal Court Complaint to be filed with the [REDACTED] Criminal Court.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

5. Said Detective Robert Francis, assigned to the 71 Precinct, on or about May 7, 2009, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Detective provided false statements during a CCRB interview in connection with CCRB Case Number 200900066.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

The Department was represented by Rita Bieniewicz, Esq., Department Advocate's Office. Respondent was represented by James Moschella, Esq., Karasyk & Moschella LLP.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 3 and 4. He is found Not Guilty of Specification Nos. 1, 2 and 5.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officer Stanislav Feldshteyn, Police Officer John Hoder, Sergeant Michael Falk, Patrice Bonnett, and Civilian Complaint Review Board (CCRB) Assistant Supervisor Nina Mickens as witnesses.

Police Officer Stanislav Feldshteyn

Feldshteyn was a four-and-a-half year member of the Department. He had been assigned to the 71 Precinct for his whole career. On January 3, 2009, he was working a 4x12 tour and was assigned to be Respondent's partner.

Feldshteyn testified that he and Respondent responded to a radio run about a male smoking marijuana [REDACTED]. Upon entering, Feldshteyn saw three or four individuals on the second and third floor. One male was "rolling what appeared to be marijuana" and dropped it on the floor upon noticing Feldshteyn. Feldshteyn then questioned the males, asking if they lived in the building or knew anyone that lived there. At this time, Respondent was standing ten to fifteen feet away on the staircase behind Feldshteyn. The males were calm and respectful upon initially being questioned.

Feldshteyn stated that a fourth male, Person A, came down the stairs. Person A walked in between the officers and the stopped males to get down the stairs. Respondent followed Person A, but Feldshteyn told him to let Person A go because Person A did not seem to be with the three males that were being investigated for the marijuana.

After Respondent followed Person A down the stairs, Feldshteyn heard a loud interaction between the two. Person A asked why he was being stopped.

Feldshteyn was left alone with the three men and Respondent was out of sight. The three individuals became "agitated" because "it was three against one and now they wanted to leave." They mockingly stated, "[Y]our partner just left you." At least two, possibly three, ran away, but Feldshteyn held down one, Person B. Feldshteyn arrested him after he recovered a long-blade knife in his back pocket.

Feldshteyn was hit in the head and taken to the hospital after the scuffle that ensued while the three men attempted to flee. Feldshteyn did not know who hit him, but Person A was not present at the time of the attack. Feldshteyn did not see Person A make any physical contact with Respondent.

Feldshteyn testified that Person A did not prevent Respondent from conducting the marijuana investigation on the three males.

Sergeant Michael Falk was the patrol supervisor that day, but Feldshteyn was unaware whether Falk was at the apartment that evening. Feldshteyn did not tell any other officers to proceed to apartment [REDACTED], nor did he tell any other officers that Person A was in any way related to the two men that fled during the stop. Feldshteyn never entered the apartment that evening, nor did he ever go to the fourth floor.

On cross examination, Feldshteyn stated that he had been partnered with Respondent in the past. When asked who was the more "experienced" officer, he admitted that Respondent was more "senior" but otherwise hesitated to answer. When pressed, he said that the situation could have been handled differently. Respondent was relatively new to the 71 Precinct, but Feldshteyn denied knowing whether Respondent had already been assigned there when Feldshteyn arrived. He admitted knowing that Respondent had been transferred from the Internal Affairs Bureau (IAB), but denied distrusting him for that reason.

When Feldshteyn encountered the individuals with the marijuana, he stood just a little more than an arm's length from them. Feldshteyn acknowledged that because Respondent was behind him, he did not observe all of Respondent's interaction with Person A.

Respondent arrived back on the third floor during the scuffle and radioed for a 10-85, additional units needed. It was possible that Respondent was with Feldshteyn on the third floor while the latter was processing Person B's arrest.

Feldshteyn did not recall whether anyone else stopped on the third floor during the incident.

Police Officer John Hoder

Hoder was assigned to the 71 Precinct. Hoder was already working in the command when Respondent was assigned to the 71 Precinct. They worked together frequently but did not socialize while off duty. They never had any altercations with each other.

On January 3, 2009, Hoder was working with Falk. Hoder arrived [REDACTED] [REDACTED] after receiving a 10-85 from Respondent. Hoder entered the building and walked upstairs to the fourth floor because the call asked for assistance there.

Hoder could see some officers and a few civilians. Hoder saw a woman standing in the entrance of apartment [REDACTED] arguing with other officers.

Hoder testified that Respondent was at the door of the apartment but did not say anything. He stated on cross examination, however, that Respondent identified Person A, then entered with Hoder following. Hoder did not recall whether Person A made any gestures. When asked about this on cross examination, however, he remembered that Person A extended his middle finger toward Respondent. He also stated that he did not recall exactly when Respondent entered the apartment. Hoder observed several other officers in the apartment but could not say who exactly.

Hoder recalled that Respondent eventually left the apartment but did not know whether he left with someone else. Person A was placed under arrest and Respondent was the arresting officer.

Hoder knew that the 10-85 was related to marijuana but did not know what Person A had done. He was "assuming" that Person A was related to the 10 85.

On cross examination, Hoder verified that Falk went with him to the fourth floor. Hoder recalled seeing Feldshteyn but did not remember where. Hoder did not recall whether Respondent was with Feldshteyn or whether Person B was in handcuffs with Feldshteyn.

Hoder described the scene on the fourth floor as "crazy." It was loud and disruptive with numerous civilians and officers in a very narrow hallway. At this point, Respondent was about 15 feet away from Hoder, with numerous officers between them, and he could not hear what was being discussed between Respondent and the female civilian. Hoder did not recall seeing a black police officer, approximately 6'2" and 250 pounds, standing in the doorway.

Hoder confirmed that he did enter the apartment, but he was not the officer that handcuffed or escorted Person A out of the apartment.

Sergeant Michael Falk

Falk was a sergeant in the 71 Precinct. On January 3, 2009, he was supervising Respondent. Hoder was Falk's driver. They responded to a 10-85 from Respondent [REDACTED]. When Falk arrived, Respondent informed him that "there was couple gentlemen that they had some weed on them and they tried to run." Feldshteyn "kind of got hurt in the process." Two individuals were in custody, two might have gone to the roof, and one was "inside the door of the apartment."

Respondent mentioned apartment [REDACTED] to Falk. Respondent and Falk went there and knocked. When the door opened, Respondent pointed out Person A. Falk asked Person A to come outside so they could speak to him. Two women inside the apartment refused, saying he did not do anything.

At this point, Falk was under the impression that Person A was one of the individuals that ran away from Respondent and Feldshteyn. Falk was aware that two men were already in custody, one for possession of marijuana and another for possession of a knife. Additionally, Falk was aware that Feldshteyn sustained an injury to the head from one of the apprehended men. Respondent never specified to Falk what the individual inside the apartment had done.

As Falk, Respondent and other officers asked Person A to step outside, Person A, who was located three feet from the door, leaned over his mother and extended his arm and middle finger outside the door. One officer reacted by grabbing his hand and Person A pulled back. The officers "were all kind of forced into the apartment at that point." The officers handcuffed Person A.

On cross examination, Falk testified that he went directly to the fourth floor and encountered Respondent and Feldshteyn, as well as two handcuffed individuals. Falk conceded that Respondent and Feldshteyn were not right by the apartment door. Falk also stated, however, that he stopped on the third floor to make sure that the officers who called the 85 were alright.

Falk acknowledged that it was possible that an officer's foot was holding the apartment door open, rather than the door being completely closed. He recalled that a woman opened the door, said something, and then closed the door again.

Patrice Bonnett

Patrice Bonnett was the manager of a residence for adults with disabilities. She was the mother of Person A. Person E was her mother. Patrice also had a daughter, Person D.

On January 3, 2009, Patrice was visiting Person E in apartment [REDACTED] [REDACTED], after the death of Patrice's father. She arrived sometime between 1845 and 1900 hours. Person A was already there. He was a college student in Buffalo at the time.

Patrice testified that she sent Person A downstairs to buy some ice. He returned and told Patrice that he was given a difficult time by police officers who were asking whether he lived in the building.

Patrice, wanting to inquire into why her son was stopped, went with Person E to the third floor, where she saw two male officers. One was Respondent, whom she described as having been a "darker complexioned" male black officer between 5'7" to 5'9" in height. The other was a white male between 5'1" to 5'3". Patrice saw both officers dealing with Person B and Person C. Patrice knew Person C because he had lived there for many years while Patrice still lived there. Person B was a friend of Person C.

Patrice testified that Respondent was trying to detain Person B by pressing his right hand on Person B's chest against the wall. Person B was moving back and forth, avoiding detention, while Person C was walking toward the staircase at the other end of the hall. Patrice testified that the white officer was leaning against a wall, observing this. Patrice was standing about ten to fifteen feet away on the opposite staircase with Person E, Person D and Person A. Patrice and Person E sent Person A and Person D back upstairs to the apartment. Other officers came from the opposite staircase and Respondent handcuffed Person B.

Patrice and Person E returned to the apartment. The door was open. One or two officers were by Person E's door, three officers were coming from the elevator, and two officers were coming up the stairs. The officer already standing next to Person E's door was neither Respondent nor the white officer from the third floor.

Patrice went into the apartment and tried to close the door, but the officer by the door placed his foot in the jamb and began asking questions. He seemed unsure of the facts, saying the police were checking on a stolen car.

Patrice recalled that "a gang of blue" accumulated in the hallway. Respondent, coming from a staircase located to the left of the apartment if one were facing the hallway, subsequently ran up the stairs in a "frenzy," shouting [REDACTED]. The other officers rushed into the apartment. A second white officer pinned Patrice's right arm behind her back. Other officers proceeded past the vestibule of the apartment to Person A, who was sitting in the dining room. Patrice saw a second black officer pinning down Person D, who was asthmatic, with his knee on her chest as she "turned colors." Patrice tried to help Person D, and one of the officers told the woman, "'[Y]ou can go too." The officers "threw" Person D out of the apartment.

Patrice testified that when officers came to apprehend Person A, he calmly stood up and turned around. When Patrice next saw Person A, he was coming out of the apartment in handcuffs with Respondent, two white officers, and two other black officers. Patrice followed behind, but the officers were beginning to disperse. She wanted to get officers' names and "badge" numbers, but the officers brushed her off.

Patrice drove to the 71 Precinct station house with her friend [REDACTED] and arrived before Person A's transport. Patrice was asked to leave by the desk officer, whom she described as "rude and abrupt." Patrice went outside where she saw [REDACTED] speaking to Respondent and Person A.

arriving with officers. Respondent attempted to explain to Patrice what was happening but she did not want to talk because she was upset after no one spoke to her earlier. Patrice learned of Respondent's name from [REDACTED].

Patrice called the CCRB to make a complaint. In that call, Patrice stated that the emergency room told them that Person D was breathing normally but her chest might have gotten bruised. The hospital referred Person D to her private pulmonologist for follow up.

Patrice admitted that in the call to CCRB, she described the officer who pinned down Person D as being two inches taller than she described him at trial.

Patrice testified that Person A's driver's license listed [REDACTED] as his address because "when he first got his driver's license that is where it came that is where his documents and everything that he lived everything is at [REDACTED]."

On cross examination, Patrice admitted that Respondent was not rude and dismissive when she attempted to gather names and shield numbers. He was the only officer to give her his name.

Respondent gave [REDACTED] his perspective of what transpired. Patrice did not see Person D's father, who was a Metropolitan Transportation Authority (MTA) Police Officer, at the station house, but heard that he was inquiring around into what had occurred.

Patrice said that she was unaware of any criminal activity in the building. She had never seen anyone smoking marijuana in the building. She stated that when she sent Person A to get ice, he returned within about five minutes.

Patrice did not know what Person B had done prior to Patrice witnessing his encounter with Respondent. She believed that the situation was not under control by Respondent or the other officer. She did not see Person B completely handcuffed.

When Patrice returned to the fourth floor, she saw at least seven police officers by Person E's door. The demeanor of the officer who placed his foot in the door was "disrespectful." The scene in general was chaotic. She noted that there were over 30 officers on the floor. Many were African American. She was unable to identify the officers initially at Person E's door. Patrice stated that the two officers by the door were not the first to enter her apartment because the group of officers had grown too large at that point. She recalled that officers began to throw into the hallway furniture that Person E used for the day care she ran from her home. This was so more officers could come into the apartment.

Patrice testified that at some point in time, after she saw the officers pinning down her and Person D she saw Respondent exit the apartment with several other African American officers and a handcuffed Person A. She did not know who handcuffed Person A, but could see that he was handcuffed at the children's table located inside the apartment.

CCRB Assistant Supervisor Nina Mickens

Mickens had been an assistant supervisor of investigations at the CCRB for almost four years. She investigated a matter involving Respondent after complaints were filed through both CCRB and IAB. She interviewed Person E, Patrice Bonnett, Person D and various police officers connected to the case.

Patrice Bonnett told Mickens that after Person A told her that Respondent had stopped him, she went downstairs and told Respondent that he lived in the building. She also asked why her son was stopped. Patrice, however, stated that Respondent was busy stopping three individuals in the hallway.

Mickens reviewed video surveillance from inside the building (see Department's Exhibit [DX] 1a-c, video of entry vestibule; second and third floors; and fourth floor, respectively).

The first video on DX 1b showed Respondent interacting with Person A on the second floor. Person A, wearing a black coat, came from the staircase and Respondent followed. They spoke, and Person A appeared to be reaching for his identification, but moved away from Respondent. Respondent followed and reached for Person A. Respondent returned into camera view and Person A followed him. They went back into the staircase. At the end of the clip, other officers came into view. Another officer picked up something small from the ground.

The second clip on DX 1b showed the third floor. Several African American women were present near the staircase and gestured toward the officers. More officers began arriving in response to the 10-85. They had one individual, not Person A, in custody and brought him into the staircase. Several officers approached an apartment on the third floor then turned around.

DX 1c showed the fourth floor. Several African American individuals are seen entering an apartment at the end of the hallway away from the camera. Mickens identified two of them as Person E and Patrice Bonnett. A younger male, whom Mickens identified as Person A, threw down a black item of clothing and walked into the apartment. Patrice and Person E followed him in. A large number of officers gathered in the hallway, mostly near the apartment. Many civilians were there as well. The apartment door opened and officers eventually entered.

Respondent told Mickens that he ordered Person A to stop and go around them, and extended his hand so Person A could not go through. Respondent stated that Person A began to yell, stated that he lived in the building, and asked why he was being stopped. Person A continued to proceed down the stairs. Respondent did not allege that Person A made contact with his hand. Respondent conceded that Person A was not involved with the three individuals being stopped for marijuana.

Respondent was the only officer identified by Person E, Patrice or Person D as having entered the apartment. Person E and Person D both said that another African American male entered the apartment.

Mickens testified that Person A was arrested for obstructing governmental administration. His case was dismissed.

On cross examination, Mickens confirmed that the subject building was enrolled in the Formal Trespass Affidavit Program (FTAP). This allowed police officers to do vertical patrols, ask for identification from individuals they believed to be trespassing, and conduct further investigations, but only if there was suspicion that the person was doing something more than trespassing.

Respondent told Mickens that he was trying to obtain Person A's identification following their initial conversation. Mickens never saw any identification verifying the building as Person A's address.

Mickens stated that the video footage was inconclusive because of "the nature of the video and because it's so crowded you can't see any faces specific faces."

Mickens confirmed that Falk told her that Person B was arrested on the fourth floor. Hoder told her that he first saw Respondent and Feldshteyn with Person B on the fourth floor.

Mickens conceded that in the original IAB referral, made by Patrice, it was alleged that Respondent threw Person D to the floor and placed his knee on her chest. However, Patrice described a different male black officer to the CCRB as having thrown Person D to the ground.

Mickens agreed that Person E and Patrice described two different officers as being the first to enter the apartment.

On re-direct examination, Mickens testified that the original CCRB complaint was filed by Person C. Thereafter, Patrice's IAB complaint was forwarded to CCRB.

On re-cross examination, Mickens verified that Patrice told her that Respondent was the officer engaged physically with Person B, and that Respondent was with another officer. Mickens later learned this was Feldshteyn. Feldshteyn was leaning against the wall while Respondent held up his hand to indicate to Patrice that he was busy, as he was arresting Person B.

Respondent's Case

Respondent testified on his own behalf.

Respondent

Respondent testified that he worked at the 71 Precinct from 2001 to 2005. He was transferred to IAB in 2005 and was there until 2008, when he "returned" to the 71 Precinct.

Respondent was assigned to patrol, where he had a different partner daily. On January 3, 2009, Respondent's partner was Feldshteyn. They received a call concerning disorderly males "smoking drugs" inside [REDACTED]. There had been several complaints and incidents at the building in the past. It was also an FTAP building.

Upon entering the building, Respondent and Feldshteyn encountered a woman on the first floor. She said that she made the complaint and pointed upstairs to the location of the men. Respondent walked up to the third floor, where he saw four men standing in an area close to the stairs. Smoke was dissipating from the area and the smell of marijuana was present.

Respondent took two men closer to the staircase and questioned them while Feldshteyn took the other two. Respondent began to ask who lived in the building. As Respondent questioned these men, Person A walked down the staircase and proceeded between the men and

Respondent. Respondent raised his left hand to block Person A because he should have walked behind Respondent. Person A knocked Respondent's hand away with his right hand and proceeded through. Respondent tried to grab Person A with his right hand but Person A had moved beyond his arm's reach.

At this time, Respondent did not know whether Person A was involved with the first four men, but felt that he might have been. As Person A proceeded in between Respondent and the men, he used the word "fucking" numerous times and complained of being harassed by the police. Additionally, Person A stated that he lived in apartment [REDACTED] and that his mother could verify this. Respondent asked him to provide his identification, to which Person A responded by taking out what appeared to be his license but refusing to hand it over. Respondent again asked Person A for his identification, and Person A walked to the other staircase at the other end of the hallway, heading down to the second floor. Respondent again attempted to grab Person A, but lost his balance and almost fell.

Respondent followed Person A to the second floor, where Person A ultimately stopped. Respondent believed Person A stopped because he saw two other police officers coming up to the second floor. Respondent told Person A to return with him to the third floor. He was "seriously thinking" that Person A might have been involved with the four men.

Back on the third floor with Person A, Respondent saw that Feldshteyn was detaining one of the men and was limping. One of the men was no longer there. Respondent did not have Person A in handcuffs at this point. Respondent called a 10-85 because he believed the situation was out of control. Person A went to the fourth floor and Respondent directed the whole of his attention to Feldshteyn and the three remaining men. Respondent helped detain one of the men, Person B,

while Feldshteyn recovered a long knife from him. Person B indicated that he had marijuana and that it had fallen on the floor.

Falk arrived with his driver. Respondent told Falk what Person A had done and that he might have gone to apartment [REDACTED]. Additionally, Respondent told Falk that one of the men had ran away and might have gone to the roof. Officers arriving at the scene proceeded to the fourth floor. Respondent stayed on the third floor because he did not know "what the status of the other two males were even though they were calm but I know that my partner took a knife out one of this gentlemen [sic] who was moving all over the place." Nevertheless, they provided identification and Respondent filed a stop-and-frisk report for them.

After Falk arrived, Respondent was on the third floor for five to ten minutes. All the arriving officers rushed up to the fourth floor. "After I went up there actually I went up there on request so I guess to see who the person was . . . they asked a male that was the same male that had hit my hand he was in handcuff they said is that him I said yes." "[T]he lieutenant" ordered that Person A be arrested.

Respondent denied that he ran up to the fourth floor and yelled [REDACTED]. When Respondent arrived on that floor, the hallway was packed with officers. Respondent saw officers leaving the apartment, but never went into the apartment himself or anywhere close to the apartment. Respondent went back to the third floor to help Feldshteyn take Person B outside, while other officers took Person A out of the building.

Respondent did not transport anyone to the 71 Precinct station house. When he returned there, he was told by a supervisor that he would be the arresting officer not only for Person A but for Person B as well. Respondent protested, saying that Person B was Feldshteyn's arrestee.

The supervisor said that Feldshteyn was “going line of duty he said he was injured while wrestling with one of the males.”

Respondent prepared the arrest report for Person A (DX 2). He listed the charges as resisting arrest and disorderly conduct, Penal Law § 240.20 (1) (engaging in “fighting or in violent, tumultuous or threatening behavior” with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof). In the narrative, Respondent wrote that “at T/P/O deft attempted to prevent A/O from effect the arrest of two disorderly male at above location by intervening. Deft then refused to comply with A/O lawful order to leave. Deft became comba[tive toward A/O” (capital letters omitted).

Respondent spoke with an assistant district attorney (ADA), who prepared the criminal complaint against Person A (DX 3). Person A was charged with resisting arrest and obstructing governmental administration, rather than disorderly conduct. Respondent was the deponent. The narrative read that Person A “was with three unapprehended individuals and defendant Person B, [REDACTED], and defendant stood in between deponent and the other individuals to prevent deponent from asking questions.” The narrative further read that Person A “was yelling at deponent stating in sum and substance why the fuck are you har[assing us for and did resist arrest by refusing to be handcuffed and flailing defendant’s arms” (capital letters omitted).

Respondent testified that these alleged actions of Person A occurred only on the second and third floors, not the fourth.

Respondent signed the complaint. He understood that by doing so, he was swearing that the contents were true to the best of his knowledge.

At the station house, Respondent's supervisor told him that someone was there to see him. Respondent went to the front of the building, where he saw two men dressed in MTA Police uniforms. One of the men stated that he was Patrice Bonnett's husband, and wanted to know about an altercation that caused his wife and "little baby" to go to the hospital. Respondent took him to the back of the building and told him what occurred.

After Respondent spoke with this "very nice gentlem[a]n," a "very combative" woman came to the precinct and said that she was the mother of one of the men that was arrested. Respondent could not recall whether this was Patrice Bonnett. He attempted to explain to the woman what had occurred, but she refused to listen.

Respondent testified that he became aware sometime in May 2010 that a CCRB complaint had been made against him. Respondent met with a CCRB investigator and told him what had occurred. Respondent told the investigator that he never entered apartment [REDACTED]

On cross examination, Respondent testified that he was questioning two of the men on the third floor for about 30 to 60 seconds when Person A came down the stairs. Person A did not wave or make any other gestures toward the men being investigated. Person A batted away Respondent's left hand and walked in between the men, causing Respondent to attempt to grab Person A. Person A stated that he could get his parents to verify his residence in the building, but refused to hand over the identification Respondent requested. He displayed a license, however, from about two arm lengths away.

After Person A stopped on the second floor, Respondent got him to go to the third floor, where he intended to place Person A under arrest for failing to show identification and hitting his hand.

Respondent asserted that Person A saw him reach for his handcuffs. He nevertheless allowed Person A to walk away because he did not want Person A to become more combative. Respondent never notified the arriving officers that Person A had resisted arrest.

Respondent was unable to recall why he said in the arrest report that Person A refused to leave, or what he meant by that. Respondent admitted that the arrest report did not mention that Person A hit his hand. Respondent confirmed that he did not ask the ADA to change the complaint to reflect that Person A had hit his hand or made contact with him.

FINDINGS AND ANALYSIS

Introduction

On January 3, 2009, Respondent and his partner, Police Officer Stanislav Feldshteyn, responded to [REDACTED] for a 911 call about men smoking marijuana in the hallway. When they arrived, they began questioning three to four men in a staircase landing on the third floor of the building.

Person A then came down the stairs. Feldshteyn testified that Person A walked between the officers and the stopped men. Respondent testified that he and Feldshteyn were each questioning two men when Person A walked between Respondent and two of the men. Respondent raised his left hand to block Person A because he simply should have walked behind Respondent instead. Person A knocked Respondent's hand away and went through, complaining profanely about being harassed by the police. Respondent tried to grab Person A with his right hand but Person A had moved beyond his arm's reach.

Respondent thought Person A might have been involved with the first four men. After Person A said that he lived in apartment [REDACTED] and could verify this, Respondent followed him down to the

second floor. Respondent asked him to provide his identification, and while Person A took out what appeared to be his license, he refused to hand it over.

Respondent testified that Person A returned to the third floor, where one of the men who had been stopped originally had attacked Feldshteyn. Respondent called a 10-85 and Person A disappeared. When backup officers arrived, Respondent told them Person A might be in [REDACTED]. Officers entered [REDACTED] and Person A was arrested.

Questions were raised at trial about animosity between Respondent and the officers that responded to the incident in question. Feldshteyn, for example, testified that he disagreed with Respondent's decision to pursue Person A. When asked who the more "experienced" officer was, Feldshteyn admitted that Respondent was more "senior." When pressed, Feldshteyn said that the situation could have been handled differently. The Advocate then asked Hoder, one of the backup officers, whether he had any altercations with Respondent or socialized with him while off duty. Respondent, for his part, felt it necessary to defend his tactics and choice to leave Feldshteyn with the originally-stopped men. He repeatedly noted that before approaching the men, he turned down his radio and put away his keys. Although Respondent was not charged with improper tactical decisions, it was evident that the Department, the other 71 Precinct officers, or both, disagreed with his choices.

The testimony revealed, in fact, that Respondent originally had been a Police Officer in the 71 Precinct, where the incident occurred. He was transferred to the Internal Affairs Bureau and at some point, before or after the transfer, he was promoted to Detective. But he then was transferred back to the 71 Precinct. He was assigned to patrol but remained in the rank of Detective. The reasons for this were not explained at trial, although the Confidential

Memorandum, infra, sheds light on the question. In any event, the matter apparently was a source of tension between Respondent and other 71 Precinct officers.

Specification No. 1

It is charged that Respondent “stopped and questioned Person A without sufficient justification.” The Advocate stated that nothing Person A did while on the staircase landing justified a stop. Furthermore, after Person A “showing his ID,” he was free to go.

The Court disagrees with the Department. First, it was undisputed that the building was part of the trespass affidavit program. This program allows members of the service to enter the building and to patrol the publicly-accessible interior. Officers may stop persons in these areas in order to ascertain whether they are residents or guests. See Case No. 81053/05 et al., p. 6 (Feb. 13, 2006). That is what Respondent was doing. Moreover, there was no evidence that, once the stop began, Person A actually showed his identification to Respondent in a way that allowed Respondent to verify his statement of residency. Respondent testified that Person A kept walking away from him. The video surveillance bears this out. In DX 1b, Person A came from the staircase, followed by Respondent. They spoke, and Person A appeared to be reaching for his identification, but moved away from Respondent. Respondent followed and reached for Person A. They both left camera view, and when they returned, Respondent was walking away.

Furthermore, Respondent had sufficient justification to stop Person A for obstructing governmental administration. Feldshteyn, the Department’s witness, testified that Person A walked between Respondent and the stopped men. Respondent testified that Person A not only could have walked around him, but that when he put up his hand to block Person A, the man knocked his hand out of the way.

Reasonable suspicion is the required standard for a police detention of a suspect short of an actual arrest. People v. Pines, 99 N.Y.2d 525, 527 (2002). Reasonable suspicion consists of a level of knowledge which would lead an “ordinarily prudent and cautious” person, see People v. Cantor, 36 N.Y.2d 106, 112-13 (1975), under the circumstances, to believe a crime has been, is being, or is about to be committed. See People v. Roque, 99 N.Y.2d 50, 54 (2002).

Obstructing governmental administration consists of intentionally obstructing or impairing the administration of a governmental function, or attempting to do so, by intimidation, physical force or interference, or any independently unlawful act. See Penal Law § 195.05. Person A’s actions provided reasonable suspicion for Respondent to conclude that Person A intentionally was interfering with his attempts to question the other individuals. As such, Respondent’s stop of Person A was lawful. Accordingly, Respondent is found Not Guilty of Specification No. 1.

Specification Nos. 2 & 5

The second specification charges that Respondent “enter[ed] Apartment [REDACTED] [REDACTED] without just cause or consent.” The fifth specification charges that Respondent “provided false statements during a CCRB interview in connection with CCRB Case Number 200900066.” Apparently that would be the CCRB complaint against Respondent. In its bill of particulars, the Department alleged that Respondent “inaccurately” stated during his May 7, 2009, CCRB interview that he did not enter apartment [REDACTED]. The Department also alleged in the bill that Respondent stated he was not the officer who apprehended Person A inside apartment [REDACTED].

The question at the outset is whether Respondent ever entered apartment [REDACTED]. It was not disputed that officers entered the apartment, and this was confirmed by the video. What was in dispute was whether Respondent entered.

Hoder testified that he observed Respondent at the door of the apartment. Respondent entered the apartment and Hoder followed. Hoder knew that Person A gave officers the finger, but Hoder did not know what precipitated Respondent's entry into the apartment.

Falk was one of the supervisors that responded to the 10-85. He saw Respondent on the fourth floor, but about 20 feet from the apartment door. There might have been an officer with his foot in the door. Falk did not know where Respondent was after Person A was removed from the apartment.

Patrice Bonnett, Person A's mother, did not see Respondent enter the apartment, but did see him "bringing [Person A] out of the apartment," along with several other African American officers. Patrice could not see what officers, if any, had their hands on Person A. When asked by the Advocate, "At this point are you sure that you saw Police Officer Francis bringing your son out of the apartment," Patrice said, "I saw him, yeah, he was standing with him." When asked by the Court to be unequivocal about whether she saw Respondent "at any point inside that apartment," Patrice answered, "I saw Detective Francis exiting the apartment."

Respondent admitted that he was on the fourth floor, but only in response to a request from other officers to perform a show-up identification on Person A. He denied ever entering the apartment.

Patrice's testimony that Respondent yelled [REDACTED] and the officers rushed into the apartment, is not supported by the video surveillance. The video shows a large group of officers gathered by the door of apartment [REDACTED]. The door eventually opened. Some officers might have

entered, although the vast majority entered at a later point in response to something. The video supports Falk's testimony, in which officers told Person A to come out of the apartment, he stuck his hand out the door while giving them the finger, the officers grabbed him, and several officers entered the apartment. The video does not show a male African American officer coming onto the scene, saying [REDACTED] and officers entering in response to that.

There is no doubt that the fourth floor was chaotic. Patrice's estimate of 30 officers was supported by the video.

Only Hoder testified that he actually saw Respondent enter the apartment. But his testimony diverged from Falk's, as Falk testified that Respondent was away from the apartment door. According to Falk, it was Person A's middle finger gesture that precipitated the entry. The Court finds this more credible than Hoder's testimony, in which Respondent entered, Hoder followed, but could not say why.

Patrice could not testify that Respondent entered the apartment. In fact, in her original referral, she stated that it was Respondent that pinned down her daughter, Person D. At trial, she testified that she saw Respondent at the door, exiting the apartment with Person A. Patrice later went to the precinct and Respondent spoke to her. His name and shield number were provided. That is how he was named as a subject officer. The sequence of events, and Patrice's uncertainty as to the identity of the officers, suggests that she might have identified Respondent as taking certain actions because she remembered his face from their precinct meeting, and not from actually being in the apartment.

In sum, the Court finds that the Department failed to prove by a preponderance of the evidence that Respondent entered the apartment. Rather, Hoder and Patrice gave equivocal testimony that might have arisen from the chaotic scene outside the apartment. It is possible, as

Respondent's counsel argued, that Hoder and Patrice observed Respondent standing just outside the apartment, there to make an identification. Accordingly, the Court finds Respondent Not Guilty of Specification Nos. 2 and 5, both of which alleged that Respondent entered the apartment.

Specification Nos. 3 & 4

The third specification alleges that Respondent "did provide incomplete and misleading information to an Assistant District Attorney, [REDACTED], and signed a Criminal Court complaint that contained inaccuracies." The fourth specification alleges that Respondent "caused an inaccurate Criminal Court Complaint to be filed with the [REDACTED] Criminal Court." The Advocate stated that both specifications referred to the arrest processing of Person A, in which Respondent spoke to an assistant district attorney about the charges.

The criminal complaint, drafted by the ADA after consultation with Respondent, charged Person A with Obstructing Governmental Administration in the Second Degree and Resisting Arrest. The complaint alleged that Person A "was with three unapprehended individuals and . . . Person B, . . . and defendant stood in between deponent and the other individuals to prevent deponent from asking questions." Further, Person A "was yelling at deponent stating in sum and substance why the fuck are you harassing us for and did resist arrest by refusing to be handcuffed and flailing defendant's arms." Respondent testified that these alleged actions by Person A occurred only on the third floor. Because the Advocate was unable to call the ADA, Respondent's testimony constituted the only evidence of what Respondent and the ADA talked about during arrest processing.

Obstructing governmental administration consists of intentionally obstructing or impairing the administration of a governmental function, or attempting to do so, by intimidation, physical force or interference, or any independently unlawful act. The Advocate argued that the manner in which Person A walked between Respondent and the stopped men was not an intentional attempt to prevent Respondent from asking questions. The Advocate also pointed out that Respondent never attempted to place Person A in handcuffs and Person A never flailed his arms.

The Court disagrees with the first premise. Respondent was not required to prove beyond a reasonable doubt, at the pleading stage, all the elements of the charged offense. All that was necessary was a statement of facts of an evidentiary nature supporting or tending to support the charges. See Criminal Procedure Law § 100.15 (3) (requirements for an information). Of course those facts had to be true. As noted in Specification No. 1, supra, the facts supported Respondent's conclusion that Person A was attempting to interfere with his attempts to question the stopped men. The Court does not read Person A's alleged intent as "to prevent [Respondent] from asking questions" as meaning that Person A's purpose literally was to prevent Respondent from speaking. Respondent was there to ask the men questions, and reasonably could have believed that Person A was trying to stop him.

There was no evidence, however, on which to base a charge of Resisting Arrest. While the video showed Person A walking away from Respondent, there was no showing that Respondent was trying to handcuff him at that time. In fact, Person A followed Respondent back into the stairwell. He later allowed Person A to leave because of the confrontation between Feldshteyn and the stopped men. Further, there was no testimony that Person A flailed his arms in an attempt to resist handcuffing. Because this part of the complaint was "inaccurate" and "contained inaccuracies," Respondent is found Guilty of Specification Nos. 3 and 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on March 1, 2000. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found Guilty of signing an inaccurate criminal court complaint. The complaint read that the defendant, Person A, obstructed governmental administration by attempting to interfere with Respondent's questioning of a group of other men that had been stopped for smoking marijuana. This was accurate. There was no basis, however, for Respondent to allege in the complaint that Person A resisted arrest by flailing his arms and refusing to be handcuffed. Thus, the complaint was inaccurate.

In *Case No. 85671/09* (Sept. 2, 2011), 30 days' forfeiture was imposed upon a 19-year officer. The officer had one prior adjudication for throwing away fake marijuana during an integrity test, and for failing to safeguard his firearm at his residence. He also had several chronic sick periods in his career. In *85671/09*, the officer was assigned as the arresting officer on a driving while intoxicated case. He did not observe the driver show signs of intoxication while behind the wheel, as opposed to in the station house, where he did observe such signs. Due to carelessness, however, he signed a criminal complaint stating that he did observe this on the street. He should have written that he was informed by another officer that the driver showed such signs.

As to penalty, Respondent submitted a letter of admiration, dated May 5, 2011, from a local business owner in the 71 Precinct, Respondent's command. Also submitted was a list of

supportive community members. The letter was sent to the Police Commissioner; it was acknowledged with a letter back to the business owner from the Police Commissioner's Office. The commanding officer of Patrol Borough [REDACTED] sent a letter of congratulations to Respondent (see RX A). The Court also notes, however, Respondent's disciplinary history (see Confidential Mem., infra).

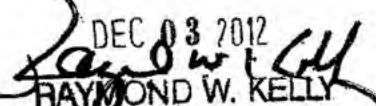
Accordingly, the Court recommends that Respondent forfeit 30 vacation days as a penalty for his misconduct in this matter.

Respectfully submitted,



David S. Weisel

Assistant Deputy Commissioner – Trials

APPROVED
DEC 03 2012

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE ROBERT FRANCIS
TAX REGISTRY NO. 925311
DISCIPLINARY CASE NO. 2010-0711

In his last three annual evaluations, Respondent received an overall rating of 4.0 “Highly Competent.” He has been awarded two medals for Excellent Police Duty. In his 12 years of service, [REDACTED]. From March 11, 2008, to January 18, 2011, he was placed on Level II Performance Monitoring as a result of “continued poor performance.”

In 2008, Respondent received Charges and Specifications for failing to submit a ‘28’ (Leave of Absence Report) on 62 occasions. After a mitigation hearing in March 2010, he was penalized with the forfeiture of 20 vacation days.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials